

In J. 8/09 the appellant had failed to pay a renewal fee and requested re-establishment of rights. He put forward the principle of proportionality, citing the fact that a company was already producing the system to which the application related and that the consequence of a single late payment of the renewal fee would be disproportionate. The Legal Board rejected this argument. The principle of proportionality could be defined as a duty for a court or an administration to find a balance between a party's error and the legally ensuing consequences when a margin of weighing the importance of the circumstances existed (see J. 5/97). However, when the boards of appeal referred to the principle of proportionality in the case law, it was never as a main ground but in support of other grounds already substantiating, to a certain extent, the allowability of the appeal especially when a reliable system for managing the time limits and an isolated mistake within such a system could be assessed (see J. 44/92 and J. 48/92).

In J. 13/11 the Legal Board stated that the time limits in the EPC aim to serve legal certainty and the proper administration of justice by avoiding any discrimination or arbitrary treatment (see also T. 1465/07, T. 592/11). The severe consequence of a loss of a patent application in the case at issue could not be considered in isolation but had to be assessed against the values of legal certainty and proper administration of justice that are embodied by the time limits appropriate to Art. 122 EPC. The application of the principle of proportionality would empty the time limits of Art. 122 EPC of any content and would make the provisions of this article uncertain. In addition the boards of appeal do not have the power to apply provisions of the EPC contra legem, that is contrary to their unambiguous meaning and purpose.

9. Reimbursement of the fee for re-establishment

9.1. Legal reason for payment of fee

In T. 46/07, the board found that, if the fee for re-establishment of rights is paid after expiry of the two-month period laid down in Art. 122(2) EPC 1973, the application for re-establishment of rights does not come into existence and therefore the fee must be refunded even without a respective request.

In T. 2454/11, the board observed that, in earlier board decisions taken in the light of G. 1/86, requests from an **appealing opponent** for re-establishment of rights had been regarded as "devoid of purpose" or "not validly filed" and the fee refunded (see e.g. T. 520/89, T. 266/97). In the case in hand the board endorsed the view taken more recently in T. 1026/06 that the fee was not refundable. It could only be reimbursed if it had been paid for no legal reason or if a refund was required by a legislative provision. Under Art. 122(3) EPC, a request for re-establishment of rights was not deemed to be filed until the fee had been paid, so payment was required for the request to have effect. There had therefore been a legal reason for its payment and there was no provision requiring a refund.

9.2. Reimbursement where request for re-establishment found to be redundant

In both T 1198/03 and T 2317/13 the respective requests for re-establishment of rights were found to be redundant (see also in this chapter III.E.6.6. above for details on these cases).

In T 1198/03, distinguishing the case in hand from other cases where an application for re-establishment of rights was equally redundant but the boards did reimburse the corresponding fee, the board stated that, in the case in hand, restitutio was not, as a matter of principle, applicable as a remedy, and that a party should not be able to reap cost benefits from the redundancy of a restitutio request filed on an auxiliary basis. Otherwise parties might be encouraged to file such inapplicable requests.

In T 2317/13 the board decided to reimburse the fee for re-establishment. It compared the case with the one in T 152/82 (OJ 1984, 301), in which the fee had been reimbursed after it became apparent that the re-establishment request would not have become effective.

9.3. Request for re-establishment due to mistakes made by EPO

In J 7/93 the EPO did not tell the appellant to ignore its previous communications issued in connection with a time limit supposed to have been missed; this would have enabled the appellant to recognise that its request for re-establishment was unnecessary. Instead, the EPO continued the proceedings for re-establishment of rights and finally refused restitutio without taking into account the fact that these proceedings had been unnecessary from the very beginning. The Legal Board found that this amounted to a substantial procedural violation within the meaning of R 67 EPC 1973. The Legal Board held that it was equitable to order reimbursement of the appeal fee, even though the appellant had not applied for this (J 7/82, OJ 1982, 391). The Legal Board held that since there was no longer any legal ground to request re-establishment of rights, the fee for re-establishment was wrongly accepted by the EPO and, therefore, had to be refunded to the appellant (confirming J 1/80 and T 522/88).

In T 971/06 as the appealed decision of the examining division did not comply with Art. 97(2) EPC 1973, it was considered invalid by the board. The examination should therefore have been re-opened without an appeal. Furthermore, the appellant was misled by the examining division for several months as to the procedure for remedying the mistake. When the examining division finally issued a communication refusing its request to correct the decision, the appellant filed an appeal, a statement of grounds of appeal and requests for re-establishment. The board considered these requests unnecessary, but an understandable reaction. It found that the fees paid in respect of these requests had to be refunded.

9.4. Reimbursement where more than one fee for re-establishment has been paid

In T 315/87 of 14 February 1989, the appellant's former representative had paid two fees for re-establishment of rights, one in respect of the time limit for filing notice of appeal and the other in respect of the time limit for filing the statement of grounds. The board, however,

considered that the case involved a single event because the two time limits had been missed for the same reason and therefore held that one of the fees had to be reimbursed.

In T 2017/12 (OJ 2014, A76) the appellant had missed the time limits for filing the appeal and the statement of grounds of appeal. It had **paid the fee** for re-establishment of rights **twice**, once for each missed time limit. The board refused the request for refund of one of the fees. In line with decision J 26/95, the board considered that the corresponding time limits expired independently of one another, notwithstanding the fact that they were triggered by the same event. Consequently, two fees for re-establishment were indeed due and hence a refund of one of those fees was not possible.

See also in this chapter III.E.4.5. "Number of re-establishment fees due where more than one time limit is missed".

F. Languages

1.	Language of filing and date of filing of a European patent application	796
2.	Language of the proceedings	797
3.	Derogations from the language of the proceedings in written proceedings and in oral proceedings	797
4.	Language privilege	799
5.	Translations	800
6.	Language-related fee reductions	801
6.1.	European patent application	802
6.2.	Request for examination	802

The central provisions of the language regime of the EPC are to be found in Art. 14 EPC and R. 3 to 7 EPC.

Attention is also drawn to the Guidelines for Examination, A-VII and E-V – March 2022 version.

1. Language of filing and date of filing of a European patent application

Art. 14(2) EPC requires that a European patent application is filed in one of the official languages of the EPO – i.e. English, French or German (Art. 14(1) EPC) – or, if filed in any other language, translated into one of the official languages. It is therefore possible to file an application in any language, in compliance with Art. 5 PLT, which states that, for the purpose of obtaining a filing date, a description of the invention in a language of the applicant's choice must be accepted (see also R. 40(1)(c) EPC). If a required translation is not filed in due time (see R. 6(1), 36(2), 40(3), 57(a), 58 EPC), the application shall be deemed to be withdrawn (Art. 14(2) EPC; cf. Art. 90(3) EPC 1973 and J 18/01).

Under the former law, a European patent application could only be filed in an official EPO language (Art. 14(1) EPC 1973) or, by persons benefiting from the "language privilege", in an official language of a contracting state other than English, French or German ("admissible non-EPO language"), with a translation to be filed in an official EPO language (Art. 14(2) EPC 1973; see also J 15/98, OJ 2001, 183; J 6/05 and J 9/01). To be accorded a date of filing, an application had to contain one or more claims, in addition to a description, in one of the languages referred to in Art. 14(1) and (2) EPC 1973 (Art. 80(d) EPC 1973; see also J 18/96, OJ 1998, 403 and J 22/03). For the current scope of the "language privilege" see Art. 14(4) EPC and R. 6(3) - (7) EPC and also in this chapter III.F.4. .

In J 7/80 (OJ 1981, 137) the Legal Board held that where documents making up an application were partly in an official language of the EPO, and partly in another language which was an official language of a contracting state, then, for the purposes of deciding whether the application complied with Art. 14(1) or (2) EPC 1973, in accordance with Art. 80(d) EPC 1973, the significant language was that used for the description and claims.

Other documents making up the application should normally be corrected by translation into that language.

In T 382/94 (OJ 1998, 24) the board held that if the drawings were filed in full on the date of filing, they formed part of the application as filed, even if they contained text matter in an official language other than the language of the proceedings. There was nothing to prevent the application being amended on the basis of a translation of this text matter into the language of the proceedings.

For a case concerning an application which was filed as a European divisional application but not in the language of the proceedings of the earlier application (cf. R 36(2), first sentence, EPC), see J 13/14, reported in chapter II.F.3.3.

2. Language of the proceedings

The official language in which the application is filed or into which it is translated is the language of the proceedings in all proceedings before the Office, unless the Implementing Regulations provide otherwise (Art. 14(3) EPC).

In G 4/08 (OJ 2010, 572) the Enlarged Board of Appeal ruled that if an international application has been filed and published under the PCT in one official language of the EPO, it is not possible, on entry into the European phase, to file a translation of the application into one of the other two EPO official languages.

3. Derogations from the language of the proceedings in written proceedings and in oral proceedings

Under R 3(1) EPC (R 1(1) EPC 1973) any party may use any EPO official language in written proceedings.

In T 706/91 the appeal had been drawn up in accordance with R 1(1) EPC 1973 in one of the official languages, namely German. The appellant had therefore cited passages from the disputed European patent's claims and description in that language, even though they had been drawn up in French as the language of the proceedings. The board decided that these references were admissible.

In G 4/08 (OJ 2010, 572) the Enlarged Board of Appeal clarified that EPO departments cannot use, in written proceedings on a European patent application or an international application in the regional phase, an EPO official language other than the language of the proceedings used for the application under Art. 14(3) EPC (thereby overruling J 18/90, OJ 1992, 511). Referring to the principle that proceedings before the EPO are to be conducted in a single language (G 4/08), the board in T 1787/16 observed that only the language of the proceedings was to be used for the written decision. Only a decision in that single language of proceedings was in keeping with the R 111(2) EPC requirements as to reasoning. R 4(1) EPC (cf. R 2(1) EPC 1973) allows any party to oral proceedings to use an official language of the EPO other than the language of the proceedings, provided he either gives the EPO at least one month's notice or arranges for interpreting